

General Knowledge

Indian Polity

STUDY NOTES

Presiding Officers of Indian Parliament



PRESIDING OFFICERS OF INDIAN PARLIAMENT



Introduction:

- **Presiding Officers** of the Indian Parliament are responsible for maintaining order and ensuring the smooth conduct of business in both the **Lok Sabha** and **Rajya Sabha**.
- The key presiding officers include the **Speaker** and **Deputy Speaker** in the Lok Sabha, and the **Chairman** and **Deputy Chairman** in the Rajya Sabha.
- These roles are vital for upholding the rules and procedures, ensuring fair debate, and representing the authority of Parliament.
- The **Speaker of Lok Sabha** and the **Chairman of Rajya Sabha** hold distinctive powers that play a crucial role in the functioning of India's legislative system.

Detailed Explanation of Presiding Officers of Indian Parliament

1. Speaker of Lok Sabha

- **Election:**
 - Elected by the members of the **Lok Sabha** after its first sitting.
 - The date of the Speaker's election is fixed by the **President**.

- The Speaker remains in office during the life of the **Lok Sabha**, but may vacate earlier due to:
 - Ceasing to be a member of the Lok Sabha.
 - Resignation by writing to the **Deputy Speaker**.
 - Removal by a resolution passed by the **Lok Sabha** with a **14-day notice**.
- The Speaker of **18th Lok Sabha** is **Shri Om Birla**(as of sept 2024).
- **Powers and Functions:**
 - Maintains **order and decorum** in the House, final authority in regulating parliamentary proceedings.
 - Final interpreter of the **Constitution, Rules of Procedure, and Parliamentary precedents**.
 - Decides on the **quorum** required for meetings and can adjourn the House if needed.
 - Holds a **casting vote** in the event of a tie.
 - Decides whether a **bill is a Money Bill**, and this decision is final.
 - Presides over **joint sittings** of both Houses.
 - Has the power to allow a **secret sitting** of the House.
 - Decides the question of disqualification under the **Tenth Schedule** (anti-defection law).
- **Independence and Impartiality:**
 - Cannot be removed except by a resolution passed by a majority of the **Lok Sabha**.
 - His/her salary and allowances are charged on the **Consolidated Fund of India**, ensuring financial independence.
 - Holds a position of great prestige, ranked alongside the **Chief Justice of India** in the order of precedence.

2. Deputy Speaker of Lok Sabha:

- **Election:**
 - Elected by the members of the **Lok Sabha** after the Speaker's election.
 - Remains in office for the life of the Lok Sabha but may vacate earlier under similar conditions as the Speaker.
 - The Position of Deputy Speaker is **vacant** Since 2019(as of sept 2024).
- **Role:**
 - Acts as the Speaker when the office is vacant or when the Speaker is absent.

- Presides over the joint sitting of both Houses in the absence of the Speaker.
- Like the Speaker, the Deputy Speaker has the power to cast a vote in the event of a tie.
- **Special Privilege:**
 - Automatically becomes the **Chairman** of any parliamentary committee he/she is appointed to.

3. Panel of Chairpersons of Lok Sabha:

- **Appointment:**
 - Nominated by the Speaker from among the members of the **Lok Sabha** (maximum 10 members).
 - Can preside over the House in the absence of the Speaker or Deputy Speaker.
- **Limitations:**
 - Cannot preside when the offices of Speaker and Deputy Speaker are vacant.

4. Speaker Pro Tem:

- **Appointment:**
 - Appointed by the **President** to preside over the first sitting of the newly elected Lok Sabha.
 - Usually, the senior-most member is chosen for this role.
- **Role:**
 - Administers the **oath** to the new members.
 - Facilitates the election of the new Speaker.
 - The office is temporary and ceases to exist once the new Speaker is elected.

5. Chairman of Rajya Sabha:

- **Role:**
 - The **Vice-President of India** is the ex-officio Chairman of the **Rajya Sabha**.
 - The current Chairman of the **Rajya Sabha** is **Shri Jagdeep Dhankhar(as of sept 2024)**.
 - Presides over the Rajya Sabha but does not vote unless there is a tie.
 - Can only be removed if he is removed from the office of the Vice-President.

- **Special Powers:**

- Unlike the **Speaker of Lok Sabha**, the Chairman does not decide whether a bill is a **Money Bill**.
- Does not preside over **joint sittings** of Parliament.

6. Deputy Chairman of Rajya Sabha:

- **Election:**

- Elected by the members of **Rajya Sabha**.
- The current deputy Chairman of the **Rajya Sabha** is **Shri Harivansh Narayan Singh(as of sept 2024)**.

- **Role:**

- Acts as the Chairman when the office is vacant or when the **Chairman (Vice-President)** is discharging Presidential functions.
- Like the Chairman, holds a **casting vote** in the event of a tie.

7. Panel of Vice-Chairpersons of Rajya Sabha:

- **Appointment:**

- Nominated by the **Chairman** from amongst the members of the **Rajya Sabha**.
- Can preside over the House in the absence of the **Chairman** or **Deputy Chairman**.

- **Limitations:**

- Cannot preside when the offices of Chairman and Deputy Chairman are vacant.

Leaders in Parliament

- **Leader of the House:**

- **Definition:** Under the Rules of Lok Sabha, the **Leader of the House** refers to the **Prime Minister** if he is a member of Lok Sabha, or any other minister nominated by the Prime Minister to function as the Leader.
- The current leader of the house in Lok Sabha is the incumbent Prime Minister **Shri Narendra Modi(as of sept 2024)**.
- In **Rajya Sabha**, the **Leader of the House** is also a minister nominated by the Prime Minister.
- The current leader of the house in Rajya Sabha is **Shri J. P. Nadda(as of sept 2024)**..
- **Role:** The Leader of the House is a key figure who influences the conduct of business and can also nominate a **Deputy Leader of the House**.

- In the **USA**, the equivalent of the Leader of the House is the **Majority Leader**.
- **Leader of the Opposition:**
 - **Definition:** The Leader of the largest Opposition party with at least **one-tenth of the total seats** in either the Lok Sabha or Rajya Sabha.
 - The current leader of opposition in Lok Sabha is **Shri Rahul Gandhi(as of sept 2024)**.
 - The current leader of the opposition in Rajya Sabha is **Shri Mallikarjun Kharge(as of sept 2024)**.
 - **Role:** This leader plays a vital role in providing **constructive criticism** of the government's policies and acting as an **alternative government**.
 - In **1977**, the Leader of the Opposition was given **statutory recognition** and is accorded the same facilities as a **cabinet minister**.
 - In the **USA**, this position is known as the **Minority Leader**.
 - The **British political system** has a unique institution called the **Shadow Cabinet**, which serves as an **alternative cabinet** in case of a change in government. Each member of the ruling cabinet is shadowed by a corresponding member in the Opposition.
- **Whip:**
 - **Definition:** The **Whip** is an official appointed by each political party to serve as an **assistant floor leader**.
 - **Role:** The Whip ensures the attendance of party members during important votes, manages their behavior, and secures support for or against issues.
 - **Conventions:** Unlike the roles of the Leader of the House and Leader of the Opposition, the position of Whip is not mentioned in the **Constitution**, the **Rules of the House**, or any **Parliamentary Statute**. It exists solely based on **parliamentary conventions**.
 - Disciplinary actions can be taken against party members who do not follow the directives of the Whip.